

Smt. Richa @ Mini vs Abhijeet Sharma on 29 August, 2024

Author: Anand Pathak

Bench: Anand Pathak

1
IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR
FA No. 623 of 2023
(SMT. RICHHA @ MINI Vs ABHIJEET SHARMA)

Dated : 29-08-2024

Shri Ankit Saxena- learned counsel for the appellant.

Heard on the question of admission.

Learned counsel for the appellant referred to order dated 28 November, 2022 in FA No. 995/2022 Mr. Nilendra Singh Pawar Vs Dr. Smt Deepti Pawar passed by Coordinate Bench of this Court at Indore and submits that this appeal under Section 19 of the Family Courts Act, 1984 is maintainable against interim maintenance awarded under Section 24 of the Hindu Marriage Act.

Chapter II Rule 9 of the High Court of Madhya Pradesh Rules, 2008 provides description of first appeal. In the said description, appeal under Section 19 of the Family Courts Act, 1984 is to be registered in the High Court as First Appeal.

However, said contentions are contrary to full Bench judgment of this Court in the case of Anup Kumar Vs Reena @ Renu 2022 (2) MPLJ 467 wherein it has been held that order under Section 24 of the Hindu Marriage Act granting maintenance is interlocutory in nature. No appeal or revision against the same is maintainable under provision of Section 19 of the Family Courts Act, 1984. However, remedy under Article 227 of the Constitution of India is available to any person aggrieved by such order. Another Division Bench of this Court in FA No. 608/2022 Ashok Kumar Chaudhary Vs Smt. 2 FA-623-2023 Parwati, directed the Registry to accept miscellaneous petition under Article 227 of the Constitution of India, if the same is filed against the order deciding application under Section 24 of the Hindu Marriage Act. Cases of other category were directed not to be accepted.

At this stage, counsel for the appellant seeks a week's time to address on the question of maintainability of appeal.

List this matter in the next week.

(ANAND PATHAK)

JUDGE

Prachi